

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 14, 2025
Status: [REDACTED]
Tracking No. m89-149r-7j7v
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-1380
Comment on FR Doc # 2025-02305

Submitter Information

Email: [REDACTED]
Organization: S&P Global

General Comment

See attached file

Attachments

SP Global AI Action Plan RFI Response 03142025



March 14, 2025

Faisal D'Souza

Networking and Information Technology Research and Development (NITRD)

National Coordination Office (NCO)

2415 Eisenhower Avenue

Alexandria, VA 22314

Re: S&P Global Response to Request for Information (RFI) on the Development of an AI Action Plan

S&P Global welcomes the opportunity to respond to the National Science Foundation (NSF) and White House Office of Science and Technology Policy's (OSTP) Request for Information (RFI) on the Development of an Artificial Intelligence Action Plan ("AI Action Plan"). S&P Global is a strong supporter and proponent of AI adoption across financial markets and is working on integrating AI into existing products and functions as well as creating new products all with the goals of assisting employees, enhancing customers' efficiencies, and driving economic growth. We applaud the administration's efforts to develop an AI Action Plan and appreciate its openness to industry input.

Introduction

S&P Global is the world's foremost provider of credit ratings, benchmarks, analytics, and workflow solutions in the global capital, commodity, and automotive markets. With each of our offerings, we help many of the world's leading organizations navigate the economic landscape so they can plan for tomorrow, today. S&P Global has more than 42,000 employees across 152 offices in 44 countries. Our business divisions include S&P Global Ratings, S&P Global Market Intelligence, S&P Dow Jones Indices, S&P Global Commodity Insights, and S&P Global Mobility.¹

S&P Global has been a leader of AI in financial markets since its acquisition of Kensho Technologies in 2018.² Leveraging its AI and machine learning (ML) capabilities, Kensho is automating core workflows and transforming the way data is ingested, linked and tagged, and how insights are discovered, for S&P Global and its customers.³ Kensho's core capabilities include ML, natural-language processing (NLP), and data discovery. S&P Global is combining Kensho's AI/ML technology with its unparalleled datasets to create a significant competitive advantage for our customers.

¹ This response does not necessarily reflect the views of S&P Global's business divisions or their analysts.

² Kensho Technologies, Inc. (2025), Available at: <https://kensho.com/>.

³ Details on Kensho solutions, Available at: <https://kensho.com/solutions>.

Sound oversight of AI tools and applications should include a risk-based approach, leverage industry-specific governmental expertise within regulatory agencies, and seek to address and mitigate AI risks, not to regulate the technology itself. Any federal policy should aim to provide additional clarity to the entire AI value chain and be as globally aligned as possible.

The United States can support continued leadership in AI through access to government data, promotion of competition based on adherence to model development best practices and responsible AI development principles, and further investment in infrastructure necessary to facilitate AI development and implementation.

Prioritize Risk-based Approach to AI

Policymakers should be cognizant of the variance in risk levels between the applications of AI tools, particularly within the same industry, and should not seek to regulate all AI applications uniformly. Regulators should weigh the risks of a given application against its benefits in analyzing overall risk levels.

- The federal government and its regulatory agencies have significant expertise in the industries they oversee. S&P Global encourages regulators to leverage their expertise to oversee the use of AI within industries under their purview, recognizing the nuances of risk levels in different industries. S&P Global believes that in many commercial sectors, especially financial services, many of the existing laws and regulations designed to be technology neutral are sufficient to address the potential risks posed by AI.
- The AI Action Plan should seek to minimize the introduction of new, AI-specific regulations in lieu of applying existing technology-neutral rules in a risk-based manner. Where new policies are deemed necessary, they should also be framed in a technology-neutral way rather than focusing exclusively on AI.

As policymakers think through liabilities and protections for today's shifting AI landscape, it's important to consider the implications for AI deployers who build on third-party models, and to extend liability protections that encourage innovation and lower barriers to entry.

- Few companies have the skilled workers and resources to create cutting-edge AI models, such as large language models (LLMs), fully in-house. Downstream, many AI product deployers are reliant on third-party AI models when creating AI applications, upon which they may build products while leveraging proprietary data.

S&P Global

- As such, deployers reliant on third-party models face potential legal liability when a problem is discovered in the base model, a deep learning model trained on a large dataset to learn general patterns, which can then be fine-tuned for specific tasks. These problems could impact the end product's utility, accuracy, or effectiveness. Therefore, it is crucial for companies to understand the scope of their liability. The AI Action Plan should call for specific liability safe harbors for deployers that build AI applications and products on top of third party LLMs for faults not controllable by the end deployer. Such safe harbors would help foster greater AI growth, including within regulated markets.

Recommendations

- Encourage regulators to utilize a risk-based approach to AI oversight, weighing the risks created by the application of an AI model against the benefits it provides.
- Clearly define risk levels within given industries, and link compliance and reporting obligations to risk levels by industry.
- Support the establishment of a federal data privacy law⁴, which would provide a baseline for individual protections from AI models and would preempt the current patchwork of state laws.
- Establish statutory definitions of “AI Developers,” “AI Deployers,” and other actors within the AI value chain. Clarify differentiated liability risks for each and support the establishment of a safe harbor for deployers from unintended consequences or risks created by a deployer’s underlying AI model.

Promote Global Alignment

The nascency of artificial intelligence, lack of a regulatory regime, and lack of clarity in the application of existing regulations has led to increasing risks and uncertainty around policies and regulatory oversight of AI. AI models, and the data necessary to develop and maintain models, are inherently cross-border in nature. Cloud computing infrastructure is decentralized, and data and compute resources are globally accessible. S&P Global urges policymakers to work towards reducing AI regulatory uncertainty and cross-border risk through international collaboration, fostering policy alignment where possible.

⁴ A federal data protection law is currently being considered by the House of Representatives, through its newly formed Data Privacy Working Group. House Energy and Commerce Committee, Chairman Guthrie and Vice Chairman Joyce Issue Request for Information to Explore Data Privacy and Security Framework (Feb. 2025), available at: <https://energycommerce.house.gov/posts/chairman-guthrie-and-vice-chairman-joyce-issue-request-for-information-to-explore-data-privacy-and-security-framework>.

S&P Global

As of 2025, 47 countries have signed on to adhere to the Organisation for Economic Co-operation and Development's (OECD) AI Principles framework. The U.S., under President Trump's administration, was among the initial signatories of this framework in 2019.⁵ While we recognize that policy regimes will differ depending on their jurisdiction, we support agreements like OECD's AI Principles framework and encourage the government to continue to engage in multilaterally on AI policy framework development. Global AI policy alignment will limit barriers to entry for American companies and help businesses maintain access to global markets, while also ensuring American AI applications power the future.

Recommendations

- Support the development of international AI risk management and governance frameworks, such as the G7's Hiroshima Process, which aim to provide global consistency.
- Support the implementation of Data Free Flow with Trust (DFFT) frameworks and the open exchange of data between countries, as proposed in 2023 at the G7 and G20.
- Encourage NIST's AI Safety Institute to engage other AI safety and security institutes around the world on policy alignment.

Data Access

Government-sourced data is an important resource for industry and is at the core of S&P Global's business. From SEC filings to trade data from Customs and Border Protection, government data is, and will continue to be, a crucial input to our products. AI model development will increase demand for high quality data for model training and the government can help foster AI innovation by providing high quality data sets for public use.

Recommendations

- Establish data transparency as the policy of the United States where possible without jeopardizing national security.
- Support the continued disclosure of government data sets for market use and consider establishing new data streams to improve access to high-quality data.
- Consider requesting further public input on which government-derived data sets are actively utilized by industry, which could be improved or are sought for publication, and to identify other opportunities for public-private collaboration on data.

⁵ The White House, *Artificial Intelligence for the American People: AI with American Values* (2019). Available at: <https://trumpwhitehouse.archives.gov/ai/ai-american-values/>.

Quality-based Competition & High-risk Application Model Risk Assessments

AI model developers should compete on a baseline standard of model quality and adherence to industry-specific responsible AI principles. Encouraging regulators to develop and establish baseline responsible AI principles would benefit enterprise and retail AI users who would be free to evaluate models based on utility, alleviate the need for unnecessary due diligence, and provide a road map for developers to mitigate risks and increase market access.

For high-risk use cases, policymakers should consider encouraging the voluntary use of independent, third-party assessments of model risk based on factors such as: transparency, adherence to industry best practices, responsible AI principles, codes of conduct, and other benchmarks. Such analyses would benefit AI deployers and end users in selecting models for a given application, improve competition, and ensure models compete on the quality of the underlying model.

Recommendations

- Support the development of industry-specific responsible AI principles, to be developed in collaboration with public and private sector stakeholders.
- Encourage accountability for model quality through market-based solutions, such as independent assessments of model risk and quality.

Energy for AI Development

In the third quarter of 2024, US datacenter power demand surged to nearly 46,000 Megawatts (MW), enough to power more than 30 million homes for a day, and S&P Global projects that U.S. datacenters will consume nearly 800 Terawatt hours (TWh) of energy in 2030, more than doubling consumption from 2024 levels.⁶ America's current energy supply may be insufficient to meet expected demand. Artificial intelligence, and its associated data centers, are a leading driver of energy demand in America, and supply must keep pace.

It takes two to three years to design, permit, and build a data center. However, timelines for power generation resources can extend to five years or more.⁷ Narrowing this gap between data center construction and power generation capacity development timelines will be crucial in maintaining America's competitive advantage on AI.

⁶ https://www.capitaliq.spglobal.com/apisv3/spg-webplatform-core/news/article?id=87834977&KeyProductLinkType=58&utm_source=MIAAlerts&utm_medium=realtime-minewsresearch-newsfeature-all-insight%20weekly&utm_campaign=Alert_Email

⁷ <https://www.spglobal.com/en/research-insights/special-reports/look-forward/ai-and-energy>

S&P Global

Supporting rapid, near-term growth in electricity demand will require squeezing more from existing power generation capacity and delivering new infrastructure at a rapid pace. The impacts of the energy production gap will be felt in regions with greater load growth. AI can help ease the energy burden through increased efficiencies. As an example, utilities are increasingly looking to “grid enhancing technologies” such as dynamic line ratings, which often use machine learning technologies, to increase existing grid utilization. This technology is already being leveraged in Texas, New York, Ohio, and Indiana.⁸

Recommendations

- Support the growth of efficient, renewable, energy sources for increasing US energy supply.
- Reduce and streamline environmental permitting processes necessary for beginning new energy production projects.
- Encourage the use of AI and innovative technologies to find efficiencies in America’s existing energy production infrastructure and to guide future development.

S&P Global appreciates the opportunity to provide comment on the development of the AI Action Plan and we look forward to working with the government on its implementation. In prioritizing a risk-based approach, improving clarity for AI developers and deployers, maintaining global alignment, and supporting investments in energy production, the AI Action Plan will help ensure the United States continues to lead the world in AI development and innovation.

Sincerely,

Darlene J. Bright
Global Head of Government Affairs & Public Policy
S&P Global

This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.

⁸ <https://www.spglobal.com/en/research-insights/special-reports/look-forward/ai-and-energy>